

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #09	CCRB Case #: 201602991	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Friday, 03/18/2016 5:00 PM	Location of Incident: West Burnside Avenue and Andrews Avenue South	18 Mo. SOL 9/18/2017	Precinct: 46
Date/Time CV Reported Fri, 04/08/2016 12:16 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 04/08/2016 12:16 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Ierna	08613	950612	NARCBBX
2. SGT Joseph Burckhard	01130	941371	NARCBBX
3. POM Asim Sheikh	03452	934178	NARCBBX
4. POM Lee Arroyo	11775	950024	NARCBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Rolando Carbonell	06831	928017	NARCBBX
2. DT3 Alhadys Reyes	459	935582	NARCBBX
3. POM Felix Liberato	08672	950749	NARCBBX
4. LT Edward Garcia	00000	934898	NARCBBX

Officer(s)	Allegation	Investigator Recommendation
A . POM Asim Sheikh	Abuse: Police Officer Asim Sheikh stopped § 87(2)(b)	A . Exonerated
B . POM Asim Sheikh	Abuse: Police Officer Asim Sheikh stopped § 87(2)(b)	B . Exonerated
C . POM Asim Sheikh	Abuse: Police Officer Asim Sheikh stopped § 87(2)(b)	C . Exonerated
D . SGT Joseph Burckhard	Abuse: Sergeant Joseph Burckhard stopped § 87(2)(b)	D . Exonerated
E . SGT Joseph Burckhard	Abuse: Sergeant Joseph Burckhard stopped § 87(2)(b)	E . Exonerated
F . SGT Joseph Burckhard	Abuse: Sergeant Joseph Burckhard stopped § 87(2)(b)	F . Exonerated
G . POM Joseph Ierna	Abuse: Police Officer Joseph Ierna stopped § 87(2)(b)	G . Exonerated
H . POM Joseph Ierna	Abuse: Police Officer Joseph Ierna stopped § 87(2)(b)	H . Exonerated
I . POM Joseph Ierna	Abuse: Police Officer Joseph Ierna stopped § 87(2)(b)	I . Exonerated
J . POM Joseph Ierna	Force: Police Officer Joseph Ierna pointed his gun at § 87(2)(b)	J . Unsubstantiated
K . POM Joseph Ierna	Abuse: Police Officer Joseph Ierna searched § 87(2)(b)	K . Unsubstantiated
L . POM Lee Arroyo	Force: Police Officer Lee Arroyo used physical force against § 87(2)(b)	L . Exonerated

Case Summary

On March 18, 2016, at approximately 6:30 p.m., § 87(2)(b) and his friend § 87(2)(b) ran into § 87(2)(b) friend § 87(2)(b) at the intersection of Andrews Avenue South and West Burnside Avenue in the Bronx. § 87(2)(b) asked § 87(2)(b) for money with which to purchase food. § 87(2)(b) then gave § 87(2)(b) five dollars. § 87(2)(b) then went to the Kennedy Fried Chicken shop across the street. He left the shop while his chicken was being prepared, and then returned to § 87(2)(b) and § 87(2)(b) and walked with them towards Loring Place, to the west side of the block. § 87(2)(b) and § 87(2)(b) were stopped by PO Joseph Ierna and Sgt. Joseph Burckhard of Bronx Narcotics, stopped § 87(2)(b) and § 87(2)(b) after receiving a transmission from PO Asim Sheikh, also of Bronx Narcotics, that PO Sheikh suspected all three men of engaging in a drug transaction **(Allegations A-I)**. Upon approaching the group, PO Ierna allegedly pointed a gun at § 87(2)(b) **(Allegation J)**. PO Lee Arroyo then came to the scene as part of the apprehension team. PO Arroyo physically struggled with § 87(2)(b) briefly before taking him to the ground **(Allegation K)**. § 87(2)(b) and § 87(2)(b) were then handcuffed. Two small twists of crack cocaine were retrieved from the ground by PO Sheikh. PO Ierna allegedly placed his hand in § 87(2)(b)'s pocket to pull out his wallet and identification while he was handcuffed **(Allegation L)**. § 87(2)(b) was released shortly afterwards, and was not arrested or issued a summons. § 87(2)(b) was arrested for § 87(2)(b). § 87(2)(b) was arrested for § 87(2)(b).

Video of this incident was obtained from the Bravo supermarket at West Burnside Avenue and Andres Avenue South in the Bronx. A SnagIt copy of the video has been placed below. The full video appears in IA #53, and the transcription for the video appears in IA #139 (Board Review 1 and 2).



snagit§ 87(2)(b) mp4

This case was closed in a period greater than 90 days because PO Arroyo missed four investigative interview appointments.

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation due to § 87(2)(b) and § 87(2)(b)'s arrests (Board Review 3).
- On May 19, 2016, a notice of claim request to the New York City Comptroller's office was returned with negative results (Board Review 4).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) § 87(2)(b) [REDACTED]
- § 87(2)(b) was a victim in CCRB case § 87(2)(b) [REDACTED]
- § 87(2)(b) was a witness in CCRB case § 87(2)(b) (Board Review 5).
- PO Ierna has been a member of service for five years. He has had two prior complaints filed against him, with a total of two prior allegations. Neither of these allegations has been substantiated (Board Review 6).
 - § 87(2)(g) [REDACTED]
- Sgt. Burckhard has been a member of service for nine years. He has had ten prior CCRB complaints filed against him, for a total of 12 previous allegations. None of these allegations have been substantiated (Board Review 6).
 - § 87(2)(g) [REDACTED]

- PO Sheikh has been a member of service for 12 years. He has had five previous CCRB complaints filed against him, for a total of nine prior allegations. None of these allegations have been substantiated (Board Review 6).
 - § 87(2)(g) [REDACTED]
- PO Arroyo has been a member of service for five years. One prior complaint, with two allegations, has been filed against him. Neither of these allegations was substantiated. PO Arroyo has one subsequent case, 201603089, currently pending investigation (Board Review 6).
 - § 87(2)(g) [REDACTED]

Potential Issues

- § 87(2)(b) [REDACTED] provided a phone statement to the CCRB, but he decided not to provide a sworn statement in this case, because he saw no personal benefit to doing so.
- The video footage in this case was too blurry to definitively ascertain whether any officer pointed a gun at or searched any civilian.

Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

Explanation of Subject Officer Identification

PO Arroyo did not have any independent recollection of this incident. § 87(2)(g) [REDACTED]
[REDACTED] both § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] attributed the force used against § 87(2)(b) [REDACTED] to a Hispanic male officer who stood above six feet tall, was approximately 30 years old, and had a medium complexion. This description correlates with PO Arroyo, who is a 6'2" tall, § 87(2)(b) [REDACTED] Hispanic male, and who was the only officer on scene to resemble that description.

Allegation A –Abuse of Authority: Police Officer Asim Sheikh stopped § 87(2)(b) [REDACTED]

Allegation B–Abuse of Authority: Police Officer Asim Sheikh stopped § 87(2)(b) [REDACTED]

Allegation C–Abuse of Authority: Police Officer Asim Sheikh stopped § 87(2)(b) [REDACTED]

Allegation D–Abuse of Authority: Sergeant Joseph Burckhard stopped § 87(2)(b) [REDACTED]

Allegation E–Abuse of Authority: Sergeant Joseph Burckhard stopped § 87(2)(b) [REDACTED]

Allegation F–Abuse of Authority: Sergeant Joseph Burckhard stopped § 87(2)(b) [REDACTED]

Allegation G–Abuse of Authority: Police Officer Joseph Ierna stopped § 87(2)(b) [REDACTED]

Allegation H–Abuse of Authority: Police Officer Joseph Ierna stopped § 87(2)(b) [REDACTED]

Allegation I–Abuse of Authority: Police Officer Joseph Ierna stopped § 87(2)(b) [REDACTED]

It is undisputed that § 87(2)(b) [REDACTED] and § 87(2)(b) [REDACTED] were walking west on West Burnside Avenue, near Andrews Avenue South, when PO Sheikh first observed them. It is undisputed that § 87(2)(b) [REDACTED] met § 87(2)(b) [REDACTED] at that intersection, and that § 87(2)(b) [REDACTED] gave him money. It is undisputed that after receiving that money, § 87(2)(b) [REDACTED] crossed the street, and went into the Kennedy Fried Chicken shop across the street. It is undisputed that while § 87(2)(b) [REDACTED] was inside of

the Kennedy Fried Chicken shop, PO Sheikh was sending a radio transmission of what he had just seen to the narcotics field team. On that day, Sgt. Burckhard was the narcotics team supervisor, and PO Ierna was assigned as the arresting officer. Both of them moved towards § 87(2)(b) and § 87(2)(b) after receiving a direction of flight and description from PO Sheikh. They stopped § 87(2)(b) and § 87(2)(b) as § 87(2)(b) and § 87(2)(b) were walking on West Burnside Avenue towards Loring Place.

§ 87(2)(b) and § 87(2)(b) in their sworn statements, as well as § 87(2)(b) in a phone statement, all maintained that § 87(2)(b) gave § 87(2)(b) five dollars with which to purchase fried chicken across the street. They all denied that any illegal drugs or any other objects were exchanged during this interaction. They stated that § 87(2)(b) went to the Kennedy Fried Chicken to purchase food. They all stated that he left the store without any chicken. § 87(2)(b) and § 87(2)(b) stated that the chicken was being prepared at the time § 87(2)(b) left, and § 87(2)(b) stated that § 87(2)(b) returned to him to tell him that he needed more money, because the portion of chicken that he wanted was several dollars more (Board Reviews 7, 8, and 9).

PO Sheikh stated that he saw § 87(2)(b) give § 87(2)(b) several bills after § 87(2)(b) and § 87(2)(b) spoke together. § 87(2)(b) then walked to the Kennedy Fried Chicken, and handed the bills to a Hispanic male in the store who did not appear to be selling chicken. That male then gave § 87(2)(b) a small object—PO Sheikh could not see what it was—and § 87(2)(b) then left the Kennedy Fried Chicken, and gave the object, PO Sheikh then saw as two twists of crack cocaine, to § 87(2)(b). All three men then began to walk west on West Burnside Avenue. PO Sheikh then transmitted, by point-to-point radio to the field team, their descriptions, and the direction in which they were going. PO Ierna and Sgt. Burckhard stopped all three men while PO Sheikh recovered two twists of crack cocaine on the sidewalk, next to where the men were stopped (Board Review 10).

PO Ierna and Sgt. Burckhard both stated that they received a transmission in regards to three individuals who engaged in a hand-to-hand transaction. They received descriptions of the individuals, their location, and the direction that they were going. PO Ierna and Sgt. Burckhard then saw § 87(2)(b) and § 87(2)(b) and stopped them (Board Review 11 and 12).

People v. DeBour, 40 N.Y.2d 201 (1976) allows officers to stop those whom they have reasonable suspicion are engaging in, are about to engage in, or have just engaged in a penal law misdemeanor or felony (Board Review 20).

§ 87(2)(g)

It is therefore recommended that Allegations A, B, C, D, E, F, G, H, and I be closed as **exonerated**.

Allegation J- Force: Police Officer Joseph Ierna pointed his gun at § 87(2)(b)

Allegation L- Abuse of Authority: Police Officer Joseph Ierna searched § 87(2)(b)

§ 87(2)(g)

§ 87(2)(b) and § 87(2)(b) both stated that PO Ierna pointed his gun at § 87(2)(b) within two feet of him, when he first approached (Board Review 7 and 8). § 87(2)(b) in his phone statement, denied that any officer drew or pointed any firearm in the presence of any civilian during the incident (Board Review 9).

§ 87(2)(b) stated that PO Ierna searched him during the incident, placing his hand in his pants pockets to retrieve his wallet and check his identification for warrants (Board Review 8).

§ 87(2)(b) did not make any mention of § 87(2)(b) being searched (Board Review 7). § 87(2)(b)

§ 87(2)(b) stated over the phone that all three men were searched at the scene (Board Review 9).

PO Ierna denied drawing or pointing a gun during the incident. He also denied searching § 87(2)(b) (Board Review 11). No other officer could remember any officer searching § 87(2)(b). No officer remembered any officer pointing a firearm at any civilian during the incident (Board Reviews 10, 12, and 13).

The video in this case is too blurry to ascertain whether officers are pointing firearms at or searching any individuals at the scene of the arrest (Board Review 14).



snagit § 87(2)(b) mp4

§ 87(2)(g)

It is therefore recommended that **Allegations J and L** be closed as **unsubstantiated**.

Allegation K- Police Officer Lee Arroyo used physical force against § 87(2)(b)

Both § 87(2)(b) and § 87(2)(b) alleged that shortly after PO Ierna approached them to stop them, PO Arroyo physically struggled with § 87(2)(b) and took him to the ground.

§ 87(2)(b) stated that while § 87(2)(b) was being stopped, PO Arroyo grabbed him by the front of his sweatshirt. He did not remember hearing any commands before PO Arroyo did so. § 87(2)(b) in exchange, grabbed the front of PO Arroyo's shirt. He stated that PO Arroyo started pushing him towards the wall of the Bravo supermarket, so he pushed back at PO Arroyo. After several minutes of struggling, PO Arroyo pushed § 87(2)(b) to the ground. He then lifted § 87(2)(b) off of the ground, and placed § 87(2)(b) in handcuffs (Board Review 8).

§ 87(2)(b) corroborated that § 87(2)(b) struggled physically with PO Arroyo, but he remembered little about the struggle, other than that § 87(2)(b) was not swinging to strike PO Arroyo with any part of his body (Board Review 7).

No officer remembered PO Arroyo physically struggling with any civilian, or his taking any civilian to the ground (Board Reviews 10, 11, 12, and 13).

Video of the incident taken from the Bravo supermarket security cameras shows two individuals engaging in a struggle. Shortly after the struggle becomes visible, one of the participants is forcefully pushed to the ground. Several other individuals help lift this individual from the ground, and take him towards the wall of the supermarket (Board Review 14).

Patrol Guide Procedure 203-11, in effect at the time of the incident, requires that officers use minimum necessary force to take subjects into custody (Board Review 15).

§ 87(2)(g)

It is therefore recommended that **Allegation K** be closed as **exonerated**.

Squad #9

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date